

2014 (2006 E.C)

1. Which one of the following statements is incorrect among the given alternatives?
 - A. In case of divorce by mutual consent, the court shall automatically declare divorce.
 - B. Divorce by mutual consent is necessarily a divorce without a cause.
 - C. Divorce by petition is a right to all spouses including the newly married ones.
 - D. All.
 - E. A&C.
2. Which one of the following statements is wrong about customary and religious marriages?
 - A. The validity of both types of marriage is not affected by their registration.
 - B. Their substantive requirements are to be prescribed by the relevant custom and religion. _
 - C. Their formality requirements are to be prescribed by the relevant custom and religion.
 - D. They cannot be divorced without the involvement of the court.
 - E. None. .

Short answers

1. Is there any possibility for the adopted child to claim maintenance from his family of origin? Why/why not? (5%) ~
2. Briefly explain the different class of shares in share companies. (5%)
3. Can spouses dissolve their marriage by physically destroying their certificate of marriage without following any additional procedure? Why/ why not? (5%)

22014 (2007 E.C)- Exit RE-Exam

3. What is the status of the relationship between the adopted child and his/her the family of origin?
 - A. It ceases to exist as soon as an adoption agreement is concluded.
 - B. It is not affected by the agreement of adoption.
 - C. Its status is to be determined by the terms of the adoption agreement.
 - D. Its status is to be determined having regard to the best interest of the child.
 - E. Its status is to be determined having regard to the age of the child.
4. Which of the following is not true about debt of spouses?
 - A. Personal debt of the spouses may be paid from common property.

B. Personal debt of the spouses should be first recovered from personal property of the indebted spouse.

C. Debts incurred in the interest of the house hold cannot be paid "from personal property of spouses.

D. Debts incurred in order to fulfill an obligation of maintenance to which one of the spouses is bound can be paid from common property.

E. A & D.

Short answer

1. If and when the contract of marriage is concluded during marriage, it shall be approved by the court. Why the law puts this condition for such contract of marriage? Doesn't it contravene the contractual freedom of the spouses? (7%)

2016 (Hidar 06, 2009 E.C.)

5. Which of the following is not a common ground of vitiation of consent for marriage and will?

A. Mistake.

B. Duress.

C. Fraud.

D. Undue influence.

E. Violence.

6. What do you think is the place of age in the agreement of adoption?

A. It is one of the factors for the eligibility of the adopter.

B. It is not one of the factors for the eligibility of the adopted.

C. It does not have a place in the adoption agreement.

D. The age of original parents of the adopted child shall be taken into account in determining the validity of the contract of adoption.

E. The age of children of the adopter shall be taken into account in determining the validity of the contract of adoption.

7. A person who is bound to supply maintenance in accordance with the family law is not legally required to cover expenses of his creditor in relation to:

A. Food.

B. Shelter.

C. Recreation.

D. Clothe.

E. Education.

8. Which one of the following statements is true about administration of common property of spouses?

A. It should be administered by the husband.

B. It should be conjointly administered by the spouses.

C. It should be administered by the wife.

D. It can be administered by one of the spouses if the public prosecutor orders to that effect.

E. Children have the right to take part in the administration of common property of spouses.

9. If one of the spouses sells a common immovable property to a third party without the consent of the other, which of the following statements is correct among the given alternatives?

A. The contract is void.

B. The contract is voidable and can be invalidated at the request of the spouse who has not given consent within six months of her/his knowledge of the conclusion of the contract.

C. The contract is voidable and can be invalidated at the request of the spouse who has not given consent within two years of her/his knowledge of the conclusion of the contract.

D. The contract can be invalidated at the request of any interested person.

E. The invalidation of the contract may be sought at any time.

Essay#

Explain whether the concept of void marriage and the effect thereof is recognized in the Revised Family Code? (10%)

2015 online one

10. In Ethiopia, Family relation can be established through the following except

A. Adoption B. Birth C. Caring for orphans D. Marriage..

11. A child is deemed to be conceived in marriage or irregular union if

A. If the child is born 210 days after the celebration of the marriage

B. If the child is born 180 days after the celebration of the marriage

C. If the child is born within 300 days after the dissolution of the marriage

D. If the child is born within 180 days after the dissolution of the marriage

12. Legal obligation to supply maintenance does not arise between

A. The adopter and his/her adopted child

B. A person and his great grand parents

C. A person and his/her nephew

D. The husband and his mother in-law

13. Law does not regulate personal and pecuniary effects of marriage where

A. the contract of marriage is invalid

B. The contract of marriage is in harmony with the mandatory provisions of the law

C. There is no contract of marriage

D. The contracting spouses are incapable to inter into such contracts

Model...

14. What is the status of the relationship between the adopted child and his/her the family of origin?

A. It ceases to exist as soon as an adoption agreement is concluded.

B. It is not affected by the agreement of adoption.

C. Its status is to be determined by the terms of the adoption agreement.

D. Its status is to be determined having regard to the best interest of the child.

E. Its status is to be determined having regard to the age of the child.

16. Which of the following is not true about debt of spouses?

A. Personal debt of the spouses may be paid from common property.

B. Personal debt of the spouses should be first recovered from personal property of the indebted spouse.

C. Debts incurred in the interest of the house hold cannot be paid "from personal property of spouses.

D. Debts incurred in order to fulfill an obligation of maintenance to which one of the spouses is bound can be paid from common property.

E. A & D

17. One of the following is different from others.

A. A property acquired by the spouse through succession.

B. A property acquired by the spouse through donation.

- C. A property the spouse owns before the conclusion of the marriage.
- D. A sum of money a spouse acquired by alienating a personal property. -
- E. An income originated from personal property

2020/2013ec

18. Which one is valid about relationship by affinity as per the federal family law?

- A, Relationship by affinity is created by blood relationship
- B. Relationship by affinity is created by Contractual relationship
- C. It has effects b/n relatives of the spouses
- D. It is not considered impediments to form irregular union
- E. It is considered impediments to form irregular union

19. Which one of the following is wrong about Customary and religious marriage?

- A. The validity of both types marriages is not affected by registration
- B. Their formality requirements are to prescribed by relevant laws
- C. Their substantive requirements are to prescribed by relevant custom and religion
- D. Their formality requirements are to prescribed by relevant custom and religion
- E. Although both were included in the civil code, they are discarded under the revised family code

20. Which of the following is different among the alternatives?

- A. Respect and Assistance
- B. Family management
- C. Cohabitation
- D. Duty of fidelity
- E. Common property

21. All are the consequences of divorce under RFC except

- A. Partition of common property
- B. Decision on Child custody
- C. Payment of common debts
- D. Decision on child maintenance
- E. Decision on payments of alimony

22. Which of the following can be considered as a ground for acknowledgment of paternity?

- A. Fraud

- B. Mistake
- C. Violence
- D. Error
- E. Fault

23. A child who does not have father either through presumption of paternity or by acknowledgment can have a father only through _____

- A. Ascertainment of paternity
- B. Agreements of adoption
- C. Acknowledgment of paternity
- D. Judicial declaration
- E. Presumption of paternity

24. Which one of the following is the prime reason for recognition of Irregular union in the RFC?

- A. Allowing persons to engage in sexual relationships without first going through marriage ceremony results in decline in public morality#
- B. The Law of marriage protects society against being confounded by laxity of morals promiscuity free love and generally extravagance
- C. In a relation to preserving public morality, religious authorities raise strong oppositions to the entire phenomenon of irregular union
- D. It is historically and practically unusual for people to have intimate relations or to live together without marriage
- E. Seen from economic, social and psychological perspectives, irregular unions are functionally identical to marriage

25. Which of the following precedes all in order of action?

- A. Retaking of personal property
- B. Payments of common debts
- C. Division of common property
- E. Decision on child custody

Short answers

Can spouses dissolve their marriage by physically destroying their certificate of marriage without following additional procedure?

2016

26. one of the following statements is not true about the nature of marriage?

- A. All types of marriage shall satisfy the same validity requirements
- B. All type of marriage shall be registered before competent officer of civil status
- C. All type of marriage produces similar legal consequence
- D. All type of marriage follows the same celebration formality

27. According to the revised family code marriage shall produce effect from

- A. time of registration of marriage
- B. time of celebration of marriage
- C. time of betrothal of marriage
- D. time of issuance of certificate of marriage

28. in the absence of contract of marriage or where contract of marriage invalid under the law, one of the following is a common property

- A. the property which the spouse posses on the day of their marriage
- B. the property which a spouse acquires by succession after marriage
- C. all property acquired by during marriage by onerous title
- D. property which a spouse acquirer by donation after their marriage

29. As a matter of rule, one of the statements is true about administration of personal property

- A. The spouses shall jointly administer their respective personal property
- B. Each of the spouse shall freely dispose his/her personal property
- C. Each of the spouse shall freely dispose the personal property of the other spouse
- D. Each of the spouse shall freely administer the personal property of the other spouse

30. A spouse can do one of the following transactions without the agreement of the other spouse

- A. Renting out a commonly owned house
- B. exchanging a commonly owned chair which has a value of birr 700
- C. Giving a birth day gift which has value birr 400
- D. Borrowing birr 400 from another person

31. A husband may not be presumed to be the father of the child

- A. If the child is born more than 1 80 days after the conclusion of the marriage
- B. If the child is born within 300 after the dissolution of marriage

C. If the child is born 300 days after the court declared the absence of the husband

D. If the child is born within 180 days after the conclusion of marriage

32. One of the following is not the obligation to supply maintenance

A. An obligation to supply maintenance exists between ascendants and descendants

B. An obligation to supply maintenance exists between person related by affinity in direct line

C. An obligation to supply maintenance does not exist between brothers and sisters

D. An obligation to supply maintenance subsists between a man and a great grand parent

33. Who will be the guardian or tutor of a child who used to live with his mother that has passed away?

A. the father of the child

B. the ascendants of the child

C. the brothers or sisters of the child

D. aunt or uncle of the child

2010/2011

34. Which of the following factors necessitated the revision of the Family Law provisions of the 1960 Civil Code of Ethiopia?

A. Providing the legal basis which guarantees the equality of the spouses-during the conclusion, duration and dissolution of marriage.

B. The need to settle disputes arising out of marriage by a competent authority in a just efficient manner.

C. Aligning the family law provisions with the FDRE Constitution and International Human Rights Instruments ratified by Ethiopia.

D. All

t/f

Under the Revised Federal Family Code a child with a presumptive father can be acknowledged by another person if the acknowledgement is deemed to be in the interest of the child.

FILL IN THE BLANK SPACES (10%).

1. The principal mode of establishing paternal filiation for children born in a legally recognized union is called_____.

2012/13

35. One of the following one is different from others

- A. A Property acquired by the spouse through succession
- B. A Property acquired by the spouse through donation
- C. A Property the spouse owned before the conclusion of the marriage
- D. A sum of money a spouse acquired by alienating a personal property
- E. An income originated from personal property

2014 (2006 E.C.)

37. Which one of the following statements is wrong about customary and religious marriages?

- A. The validity of both types of marriage is not affected by their registration.
- B. Their substantive requirements are to be prescribed by the relevant custom and religion. _
- C. Their formality requirements are to be prescribed by the relevant custom and religion.
- D. They cannot be divorced without the involvement of the court.
- E. None. .

38. Is there any possibility for the adopted child to claim maintenance from his family of origin? Why/why not? (5%)

2016/2017

39. Who is entitled to lodge opposition to marriage in case where the marriage to be concluded is a bigamous marriage?

- A. The fathers of the future spouses
- B. The uncles of the future spouses
- C. The public prosecutor
- D. Ascendants of one of the future spouses
- E. Brothers and sisters of the future spouses

40. Which one of the following is an additional requirement for the legal acceptability of contract of marriage made by spouses during marriage relative to contract of marriage concluded before or on the date of celebration of marriage?

- A. Approval of the court
- B. Conformity with mandatory provisions of the law
- C. The need to reduce the contract in a written form
- D. The prohibition of simple reference in the contract to local custom, religion or law of a country for the regulation of the personal and pecuniary relations of the spouses
- E. The requirement that the contract shall be signed by the contracting spouses

41. Which one of the following essential condition to the agreement of adoption is the same both for the Civil Code and the Revised Family Code?

- A. Age of the adopter
- B. Age of the adopted
- C. The consent of the parents of adopted child
- D. The non-existence of children of the adopter
- E. The need for the approving court to hear the opinion of the concerned authority in case of inter-country adoption

2017/2010

42. The law does not step in to govern the personal and pecuniary effects of marriage where:

- A. There is no contract of marriage at all.
- B. The contract of marriage is invalid.
- C. The contracting spouses lack capacity to enter into such contract.
- D. The contract of marriage is consistent with mandatory provisions of the law.
- E. The contract of marriage concluded after marriage is not approved by court